

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MACARIO WILCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, and THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
LANSER MONTILLA (SHIELD NO.: 5568), "JOHN
DOES," and "JANE ROES,"

Defendants.

Index No.

Plaintiff designates Bronx County
as the place of trial.**SUMMONS**

The basis of venue is:

The County in which the action
occurred

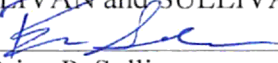
County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs' attorneys within twenty days after the service of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
March 2, 2022

SULLIVAN and SULLIVAN LLP.,

By: 
Brian P. Sullivan

Attorneys for Plaintiffs

200 Garden City Plaza

Suite 201

Garden City, New York 11530

(516) 746-6446

Defendant's addresses:

THE CITY OF NEW YORK: 100 Church Street, New York, NY 10007
One Centre Street, New York, New York 10007THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER LANSER MONTILLA
(SHIELD NO.: 5568), "JOHN DOES," and "JANE ROES,"

100 Church Street, New York, NY 10007

One Centre Street, New York, New York 10007

FILED WITH THE CLERK OF THE COURT ON _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MACARIO WILCHEZ

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

THE CITY OF NEW YORK, and THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
LANSER MONTILLA (SHIELD NO.: 5568), "JOHN
DOES," and "JANE ROES,"

Defendants.

Plaintiff, by his attorneys, Sullivan and Sullivan LLP., complaining of the defendant upon information and belief and at all times hereinafter mentioned, allege:

FIRST CAUSE OF ACTION FOR NEGLIGENCE

1. That defendant the CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. This Summons and Complaint is being filed within 1 year and 90 days for the occurrence pending a determination by the court for leave to file a late Notice of Claim against CITY. That simultaneous to the commencement of this action, a Notice of Claim was duly served on the CITY, setting forth the time when, the place where, and the circumstances under which the incident, which is the subject of this complaint, occurred.
3. That at all times hereinafter mentioned, Police Officer LANSER MONTILLA (hereinafter "MONTILLA"), was and is an agent, servant and/or employee of the CITY.
4. That at all times hereinafter mentioned, MONTILLA was and is employed by the defendant CITY as a member of the New York Police Department ("NYPD").
5. That on December 8, 2020, MONTILLA was on duty as a CITY police officer.
6. That on December 8, 2020, MONTILLA was acting under the color of law and color of his authority as a CITY police officer.

7. That at all times hereinafter mentioned certain police officers, whose identities are presently unknown, were agents, servants and/or employees of the CITY.
8. That at all times hereinafter mentioned, certain police officers, whose identities are presently unknown were employed by the CITY as members of the NYPD.
9. That on December 8, 2020, those police officers, whose identities are presently unknown, were on duty as CITY police officers.
10. That on December 8, 2020, those police officers, whose identities are presently unknown, were acting under the color of law and color of their authority as CITY police officers.
11. That on December 8, 2020, plaintiff MICARIO WILCHEZ (hereinafter "WILCHEZ") was inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York.
12. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York., while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA wrongfully and unlawfully used excessive force during the arrest of claimant, MACARIO WILCHEZ.
13. That on December 8, 2020, at the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA wrongfully and unlawfully used excessive force during the arrest of claimant, MACARIO WILCHEZ.
14. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, certain police officers, whose identities are presently unknown, while acting under the color of law and the color of their authority as CITY police officers, wrongfully and unlawfully used excessive force during the arrest of claimant, MACARIO WILCHEZ.
15. That the above was caused solely by reason of the negligence, carelessness, and recklessness of the CITY.
16. That as a result of the above, WILCHEZ sustained serious personal injuries, and conscious pain and suffering.

17. That by reason of the negligence, carelessness, and recklessness of the CITY, WILCHEZ claims damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION FOR ASSAULT

18. That WILCHEZ repeats and reiterates each and every allegation set forth above as if set forth more fully at length herein.

19. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA did intentionally assault WILCHEZ.

20. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York., while acting under the color of law and the color of his authority as a CITY Police Officer, MONTILLA did intentionally assault WILCHEZ.

21. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York., certain police officers, whose identities are presently unknown, while acting under the color of law and the color of their authority as CITY police officers, did intentionally assault WILCHEZ.

22. That as a result of the assault, WILCHEZ suffered severe, serious and permanent personal injuries.

23. That by reason of the foregoing assault, WILCHEZ claims compensatory and punitive damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION FOR BATTERY

24. That WILCHEZ repeats and reiterates each and every allegation set forth above as if set forth more fully at length herein.

25. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA intentionally battered plaintiff.

26. That on December 8, 2020, while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA intentionally battered WILCHEZ.
27. That on December 8, 2020, while inside the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, certain police officers, whose identities are presently unknown, while acting under the color of law and the color of their authority as CITY police officers, intentionally battered WILCHEZ.
28. That as a result of the foregoing battery, WILCHEZ suffered severe, serious and permanent personal injuries.
29. That by reason of the foregoing battery, WILCHEZ claims compensatory and punitive damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.
30. That by reason of the foregoing false arrest, WILCHEZ suffered severe, serious and permanent personal injuries.
31. That by reason of the foregoing false arrest, WILCHEZ claims compensatory and punitive damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION FOR EXCESSIVE USE OF FORCE

32. That WILCHEZ repeats and reiterates each and every allegation set forth above as if set forth more fully at length herein.
33. That on December 8, 2020, at the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, while acting under the color of law and the color of his authority as a CITY police officer, MONTILLA used excessive force on WILCHEZ.
34. That on December 8, 2020, at the 5 Below store located at 2156 Bartow Avenue, Bronx, New York, certain police officers, whose identities at this time are presently unknown, while acting under the color of law and the color of their authority as CITY police officers, used excessive force on WILCHEZ.
35. That as a result of the excessive use of force, WILCHEZ suffered severe, serious and permanent personal injuries.

36. That by reason of the foregoing excessive use of force, WILCHEZ claims compensatory and punitive damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION PURSUANT TO 42 USC § 1983

37. That WICHEZ repeats and reiterates each and every allegation set forth above as if set forth more fully at length herein.

38. That by reason of the foregoing, the CITY, under the color of law State law, subjected WILCHEZ, herein to the deprivation of his rights, privileges and/or immunities secured by the Constitution of the United States.

39. That by reason of the foregoing deprivation of constitutional rights, the CITY is liable to WILCHEZ under Title 42 of the United States Code, including, but not limited to, Section 1983 thereof.

40. As a result of the deprivation of constitutional rights, privileges and immunities, WILCHEZ suffered severe, serious and permanent personal injuries.

41. That by reason of the deprivation of constitutional rights, privileges and immunities, WILCHEZ claims compensatory and punitive damages against the CITY in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiffs demand judgment against CITY in the above causes of action in amounts which exceed the jurisdictional limits of the all the lower Courts in the State of New York, which would otherwise have jurisdiction, together with costs, interests and disbursements; and in view of the wanton, willful and egregious conduct of the CITY, punitive damages are also claimed in a sum in excess of the jurisdictional limits of all the lower courts of the State of New York, which would otherwise have jurisdiction, together with costs, interests and disbursements.

Dated: Garden City, New York
March 2, 2020

SULLIVAN and SULLIVAN LLP.,

By: 

Brian P. Sullivan

Attorneys for Plaintiffs
200 Garden City Plaza
Suite 201
Garden City, New York 11530
(516) 746-6446

NASSAU OF NASSAU)

York affirms pursuant to CPLR § 2106 and under the penalties of perjury as follows:

upon information and belief, affirmant believes the matters alleged therein to be true.

maintain their offices.

are communications, papers, reports and investigations contained in the file.

March 2, 2022

BRIAN P. SULLIVAN, ESQ.